STANDATA interpretation 23-BCI-035

Building

Attached garage separation serving a house with a secondary suite

Date Issued: March 2025

Purpose

To clarify the application of Sentence 9.10.9.18.(3) of the National Building Code – 2023 Alberta Edition (NBC(AE)) to a house with a secondary suite.

Discussion

Sentence 9.10.9.18.(3) of the NBC(AE) waives the requirement for a one-hour fire separation between an attached garage and the remainder of the building where the attached garage serves “only the dwelling unit” to which it is attached or in which it is built. This has created debate as to whether Sentence 9.10.9.18.(3) can be applied to a house with a secondary suite, as the attached garage is considered to serve not only the primary dwelling unit, but the secondary suite as well. This is the case regardless of the actual garage access/use that the secondary suite tenant is granted by the owner.

A secondary suite is defined in the NBC(AE) as a “self-contained dwelling unit,” and the definition’s appendix note states that a house with a secondary suite contains two dwelling units in total (see Sentence 1.4.1.2.(1) of Division A).

However, while the NBC(AE) defines a house with a secondary suite as containing two dwelling units, it is important to consider the following:

- The NBC(AE) already addresses the separation between an attached garage and a single dwelling unit or house with a secondary suite, for the purposes of limiting fire spread from the garage to other parts of the building (see Sentences 9.35.1.1.(1) and 9.35.4.1.(2)).
- The NBC(AE) treats a house with a secondary suite the same as a single dwelling unit for the purposes of other requirements, such as for exposing building face construction for a house that faces its detached garage (see Sentence 9.10.15.5.(4)) or determining whether professional involvement is required for a project (see Sentence 2.4.1.1.(2) of Division C).
- The NBC(AE) permits reductions to other separations in a house with a secondary suite, such as between the dwelling units and between the public corridor and remainder of the building (see Sentences 9.10.9.16.(4) and 9.10.9.17.(4)).
- Sentence 9.10.9.18.(3) was developed prior to the concept of secondary suites being introduced into the NBC(AE) and was not intended to prevent application involving a house with a secondary suite.

Given the above NBC(AE) context, it is intended to allow the application of Sentence 9.10.9.18.(3) to a house with a secondary suite, which waives the one-hour fire separation requirement for the attached garage.

Although the one-hour fire separation is not required, it is important to note that in addition to the requirement for the interior of the attached garage to be finished in accordance with Article 9.35.4.1., the separation between the

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attached garage and remainder of the house must still include an air barrier system. This helps prevent the passage of carbon monoxide and exhaust fumes into the living space (see Sentence 9.10.9.18.(4)).

Code References

Division A, Sentence 1.4.1.2.(1)

1.4.1.2. Defined Terms
1) The words and terms in italics in this Code shall have the following meanings:
Secondary suite means a self-contained *dwelling unit* located in a *building* or portion of a *building* of only *residential occupancy* that contains only one other *dwelling unit* and common spaces, and where both *dwelling units* constitute a single real estate entity. (See Note A-1.4.1.2.(1).)

Note A-1.4.1.2.(1) Secondary Suite
A secondary suite is a self-contained dwelling unit that is part of a house containing not more than two dwelling units (including the secondary suite) and any common spaces such as common storage, common service rooms, common laundry facilities or common areas used for egress. Secondary suites are typically created within an existing single dwelling unit—commonly called a “house”—either constructed as an addition to an existing house or incorporated during the construction of a new house. A secondary suite may have more than one storey and may be on the same level as the principal dwelling unit of the house or be above or below it.

Examples of buildings where secondary suites are permitted include individual detached houses, or where the secondary suite is located in a portion of a building, semi-detached houses (half of a double) and freehold row houses.

Division C, Sentence 2.4.1.1.(2)

2.4.1. Professional Involvement
2.4.1.1. General
2) For the purposes of Sentence (1), *secondary suites* need not be considered as *dwelling units*.

Sentence 9.10.9.16.(4)

9.10.9.16. Separation of Residential Suites
4) Walls and floor-ceiling framing in a house with a *secondary suite* that separate *dwelling units* from each other or *dwelling units* from ancillary spaces and common spaces need not comply with Sentence (1), where the walls and floor-ceiling framing are protected by a continuous smoke-tight barrier of not less than 12.7 mm thick gypsum board installed on
a) both sides of walls, and
b) the underside of floor-ceiling framing.
(See Sentence 9.10.9.3.(2) for *closures*.)

Sentence 9.10.9.17.(4)

9.10.9.17. Separation of Public Corridors
4) Where a *public corridor* is located in a house with a *secondary suite*, a continuous smoke-tight barrier of not less than 12.7 mm thick gypsum board shall be installed on
a) both sides of walls separating the corridor from the remainder of the *building*, and
b) the underside of floor-ceiling framing separating the corridor from the remainder of the *building*.
(See Sentence 9.10.9.3.(2) for *closures*.)

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Article 9.10.9.18.

9.10.9.18. Separation of Storage Garages
1) Except as provided in Sentences (2) and (3), a *storage garage* shall be separated from other *occupancies* by a *fire separation* having not less than a 1.5 h *fire-resistance rating*.

2) Except as permitted in Sentence (3), *storage garages* containing 5 motor vehicles or fewer shall be separated from other *occupancies* by a *fire separation* of not less than 1 h.

3) Where a *storage garage* serves only the *dwelling unit* to which it is attached or in which it is built, it shall be considered as part of that *dwelling unit* and the *fire separation* required in Sentence (2) need not be provided between the garage and the *dwelling unit*.

4) Except as provided in Sentence (5), where a *storage garage* is attached to or built into a *building* of *residential occupancy*,
a) an *air barrier system* conforming to Subsection 9.25.3. shall be installed between the garage and the remainder of the *building* to provide an effective barrier to gas and exhaust fumes, and
b) every door between the garage and the remainder of the *building* shall conform to Article 9.10.13.15.
(See Note A-9.10.9.18.(4).)

5) Where membrane materials are used to provide the required airtightness in the *air barrier system*, all joints shall be sealed and structurally supported.

Sentence 9.10.15.5.(4)

9.10.15.5. Construction of Exposing Building Face of Houses
4) The requirements regarding *fire-resistance rating* and type of cladding-sheathing assembly shall not apply to the *exposing building face* or projections from an *exposing building face* of a *dwelling unit* or a house with a *secondary suite* facing a detached garage or accessory *building*, or a garage or accessory *building* facing a *dwelling unit* or a house with a *secondary suite*, where
a) the detached garage or accessory *building* serves only one *dwelling unit* or a house with a *secondary suite*,
b) the detached garage or accessory *building* is located on the same property as that *dwelling unit* or house with a *secondary suite*, and
c) the *dwelling unit* or house with a *secondary suite* served by the detached garage or accessory *building* is the only *major occupancy* on the property.

Sentence 9.35.1.1.(1)

9.35.1.1. Application
1) This Section applies to garages and carports serving not more than one *dwelling unit* or a house with a *secondary suite*.

Sentence 9.35.4.1.(2)

9.35.4.1. Interior Finish
2) The walls and ceilings of an attached garage shall have an interior finish consisting of
a) not less than 12.7 mm thick gypsum board conforming to Subsection 9.29.5.,
b) lath and plaster conforming to Subsection 9.29.4., or
c) any material that can be shown to remain in place and prevent the passage of flames for not less than 15 min when subjected to the standard fire exposure in CAN/ULC-S101, “Standard Method of Fire Endurance Tests of Building Construction and Materials.”

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Application

This STANDATA applies where an attached storage garage, containing five motor vehicles or fewer, serves a house with a secondary suite.

Interpretation

Sentence 9.10.9.18.(3) applies where an attached storage garage serves only the dwelling unit, or house with a secondary suite, to which it is attached or in which it is built.

This INTERPRETATION is applicable throughout the Province of Alberta.

Unless stated otherwise, all Code references in this STANDATA are to Division B of the National Building Code – 2023 Alberta Edition.

Issued by the Provincial Building Administrator

[Original Signed]

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